

26STCV01332 26STCV01332

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-13

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Case Number: 26STCV01332 Hearing Date: August 13, 2026 Dept: 512

HEARING DATE: Thurs., August 13, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Turrentine

v. HQ L.A., Inc. COMP.

FILED: 01-14-26

CASE NUMBER: 26STCV01332

NOTICE:

OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Kristina Kourasis, Esq. and Michelle N. Gubik, Esq. of Landegger Verano,
ALC for Defendant HQ L.A. Inc.

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Kristina Kourasis, Esq.

and Michelle N. Gubik, Esq. of Landegger Verano, ALC's Motion to be Relieved as Counsel for Defendant HQ L.A. Inc. is GRANTED. However, a corrected MC-053 form entitled "Order Granting

Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days.

Further, on

its own motion, the Court sets an OSC Re Status of Defendant HQ L.A. Inc. for September 30, 2026 at 8:30 a.m. in Dept. 512 in the Stanley Mosk Courthouse, for Defendant to advise the Court as to the status of its representation by counsel who is a member of the California State Bar. Failure to have representation before the next hearing will result in Court striking the Defendant's Answer.

As an entity, Defendant HQ L.A. Inc. may not represent itself in this litigation, and may only appear through counsel who is a member of the California State Bar.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Defense Counsel is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 9, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 9, 2026 []

Late [X] None

ANALYSIS:

I.

Background

On January 14, 2026, Plaintiff Danielle Turrentine ("Plaintiff") initiated the instant action against Defendant HQ L.A. Inc. dba Hair Queen LA ("Defendant") and Does 1-10, alleging 20 causes of action arising from Plaintiff's employment with Defendant. (Compl., pp. 1-4.)

On April 24, 2026, Defendant filed an Answer.

On July 16, 2026, Defendant's Counsel Kristina Kourasis, Esq. and Michelle N. Gubik, Esq. ("Counsel") filed the instant Motion to be Relieved as Counsel for Defendant (the "Motion").

No Opposition to the Motion has been filed.

II.

Legal Standard

Code

of Civil Procedure section 284 states that "the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

"[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current."

(Cal. Rules of Court, rule 3.1362, subd. (d).)

III.

Discussion

On July 16, 2026, Counsel moved the Court to be relieved as attorney of record for Defendant. (MC-051.) Counsel filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Counsel seeks to be relieved on the following grounds: "The client has failed to cooperate and maintain communications. Additionally, the outstanding fees remain unpaid." (MC-052, ¶ 2.)

Albeit sparsely stated, the Court is

satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Motion satisfactorily complies with California Rules of Court, rule 3.1362.

However, the MC-053 Form needs to be resubmitted with accurate dates.

Accordingly, Counsel's Motion is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

IV.

Conclusion & Order

Accordingly, Counsel Kristina Kourasis, Esq. and Michelle N. Gubik, Esq. of Landegger Verano, ALC's Motion to be Relieved as Counsel for Defendant HQ L.A. Inc. is GRANTED. However, a corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days.

Further, on its own motion, the Court sets an OSC Re Status of Defendant HQ L.A. Inc. for September 30, 2026 at 8:30 a.m. in Dept. 512 in the Stanley Mosk Courthouse, for Defendant to advise the Court as to the status of its representation by counsel who is a member of the California State Bar. Failure to have representation before the next hearing will result in Court striking the Defendant's Answer.

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The Court's Ruling and Attorney's

relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Defense Counsel is ordered to give notice.